

Administrative Court Act, 2019

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 8

Administrative Court Act, 2076 (2019)

Certification Date

2076.06.24

Amending Acts

1. Some Nepal Acts Amendment Act, 2082 (2025) 2082.04.14

An Act Made to Provide for the Administrative Court

Preamble: Whereas, it is desirable to make timely provisions regarding the formation, powers, and procedures of the Administrative Court,

The Federal Parliament has enacted this Act. 1. Short Title and Commencement: (1) This Act may be cited as the "Administrative Court Act, 2076 (2019)."

(2) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) "Court" means the Administrative Court formed pursuant to Section 3.

(b) "Chairperson" means the Chairperson of the Court.

(c) "Employee" means an employee working in the civil service of the Government of Nepal, the Nepal Health Service, the Nepal Federal Parliament Service, or in the service of a public institution, and the term also denotes the following persons:-

(1) Teachers working in community schools,

(2) Employees serving in the Provincial Civil Service established pursuant to Provincial law, any other government service, or in the service of an institution in which the Provincial Government has more than fifty percent ownership,

(3) Employees of local levels.

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(e) "Member" means a member of the Court, and the term also denotes the Chairperson.

(f) "Public Institution" means the following institutions:-

(1) A company, bank, corporation, authority, public corporation, foundation, board, center, council, or a school receiving regular grants from the Government of Nepal, in which the Government of Nepal has ownership or control of fifty percent or more of the shares or assets, and other organized institutions of a similar nature,

(2) A regulatory body formed pursuant to the prevailing federal law,

(3) Any other institution designated as a public institution by the Government of Nepal by publishing a notice in the Nepal Gazette. 3.

Formation of the Court: (1) The Government of Nepal shall, by publishing a notice in the Nepal Gazette, form an Administrative Court with a Chairperson and Members as follows for the purpose of hearing cases under Section 7 or appeals on matters under that Section:- (a) A person designated or appointed by the Government of Nepal, on the recommendation of the Judicial Council, from among persons who have been or possess the qualification to be the Chief Judge of a High Court, or who have served in a special class post of the Nepal Judicial Service ? Chairperson (b) One person appointed by the Government of Nepal from among persons retired from a special class post of the Nepal Judicial Service or having obtained a post-graduate degree in law and possessing at least twenty years of experience in the field of law or justice ? Member (c) One person appointed by the Government of Nepal from among persons retired from a special class post of the Civil Service or having obtained a post-graduate degree in any subject and possessing at least twenty years of experience in the field of public administration ? Member (2) The seat of the Court formed pursuant to Sub-section (1) shall be in the Kathmandu Valley, and the territorial jurisdiction of that Court shall extend throughout Nepal. (3) Notwithstanding anything contained in Sub-section (2), if more than two hundred cases from a Province are registered and pending in the Court under Sub-section (2), the Government of Nepal shall, by publishing a notice in the Nepal Gazette, form a Court under Sub-section (1) with its seat in the capital of that Province. Provided that, in the case of the Province where the Court under Sub-section (2) is located, a separate Court under this Sub-section shall not be formed. (4) The territorial jurisdiction of the Court formed pursuant to Sub-section (3) shall be as prescribed by the Government of Nepal, on the recommendation of the Judicial Council, by publishing a notice in the Nepal Gazette. While so prescribing jurisdiction, jurisdiction may also be prescribed to extend to other adjacent Provinces in addition to the Province where that Court is located. (5) If, at the time of formation of a Court under Sub-section (3), any case falling within the territorial jurisdiction of that Court is pending in the Court under Sub-section (2), such case shall be transferred to the Court under Sub-section (3). 4.

Term of Office of Chairperson and Member: (1) Subject to Section 5, the term of office of the Chairperson and Member shall be five years. (2) Notwithstanding anything contained in Sub-section (1), no person shall be appointed to the office of Chairperson or Member for more than two terms. 5. Circumstances of not Remaining in Office: (1) A Chairperson or Member appointed under this Act shall not remain in office in the following circumstances:- (a) If the term of office of that person expires under Section 4, (b) If the resignation submitted by that person from office is accepted by the Government of Nepal, (c) If the Government of Nepal removes that person from office on the grounds of misconduct, lack of competence, or failure to honestly perform the official duties, (d) If that person attains the age of sixty-three years, (e) If that person dies. (2) Before removing a Chairperson or Member appointed under this Act from office, the Government of Nepal shall give such person a reasonable opportunity to present their defense. (3) Notwithstanding anything contained in Sub-section (1), if a serving Judge of a High Court is designated as a Member of the Court and that person retires from the office of Judge of the High Court for any reason, such person shall be deemed to have automatically retired from the Court constituted under this Act. The facilities that such retired Judge shall receive shall be as provided in the prevailing law relating to service conditions of that person. 6. Remuneration, Service Conditions and Facilities: The remuneration, facilities and service conditions of the Chairperson and Member appointed under this Act shall be equivalent to those of the Chief Judge and Judge of a High Court, respectively. 7. Jurisdiction of the Court: Amended by Some Nepal Acts Amendment Act, 2082.(1) Notwithstanding anything contained in the prevailing law, the Court shall have the power to hear appeals against decisions or final orders made on the following cases or matters:- (a) Departmental punishment imposed on an employee pursuant to prevailing law, (b) Transfer, promotion, or grade promotion of an employee, (c) Gratuity, pension, or retirement of an employee, (d) Adjustment of an employee, (e)

Matters relating to other terms of service and facilities of an employee. (2) Notwithstanding anything contained in Clause (a) or (b) of Sub-section (1), if, under the law relating to the service conditions of an employee, a complaint or appeal against departmental punishment imposed on an employee or regarding promotion lies to any body or official, an appeal to the Court shall lie only after such body or official has decided on that matter. 8.

Exercise of the Court's Jurisdiction: (1) The jurisdiction of the Court shall be exercised collectively by all three Members. Provided that, a bench consisting of one Member may conduct the proceedings of a case, and a bench consisting of two Members including the Chairperson may conduct the proceedings and decide the case. (2) In a bench consisting of three Members, if there is unanimity among all three Members or a majority of two Members, that opinion shall be considered the decision of the Court. (3) If there is no unanimity in a bench consisting of two Members, in the case of proceedings, if the bench includes the Chairperson, the action shall be taken according to the opinion of the Chairperson, and if the bench is without the Chairperson, according to the opinion of the senior Member. In the case of a judgment or final order of the case, the matter shall be presented to the Member who was previously absent, and the opinion supported by that Member shall be considered the decision of the Court. (4) If, when presented to the previously absent Member under Sub-section (3), differing opinions still arise, the opinion of the Chairperson shall be the decision of the Court.

9. Powers of the Court: The Court shall have the following powers:- (a) To confirm, annul, or partially annul a decision or final order made by the concerned body or official, (b) If the concerned body or official has omitted to examine any evidence, to examine such evidence or to send the file to the concerned body or official for examining such evidence while keeping the case pending, (c) If it appears necessary to inquire into any matter from the concerned party, to summon and inquire from that party and cause relevant documents to be submitted.

9a. Added by Some Nepal Acts Amendment Act, 2082. Not to Hear Cases Involving Conflict of Interest: (1) The Chairperson or a Member shall not conduct, hear, or decide a case involving a conflict of interest. (2) Notwithstanding anything contained elsewhere in this Act, in a case where the Chairperson cannot conduct, hear, or decide the case due to a conflict of interest, a bench of two Members excluding the Chairperson shall conduct, hear, or decide such case. Provided that, a case in which the Chairperson and a Member cannot conduct, hear, or decide due to a conflict of interest shall be sent to the High Court having territorial jurisdiction, and the concerned High Court shall conduct, hear, or decide such case. 10.

Submission of Files, Documents or Replies: (1) If the Court orders any body or official to submit any file, document, or any other thing required as evidence in a case, or requests a clarification or reply on any matter, the concerned body or official shall comply with such order within the time specified by the Court. (2) If, due to failure to comply with an order given by the Court under Sub-section (1), there is an obstacle in conducting or deciding the case, unnecessary harassment is caused to any party, or an adverse effect is caused on the rights of that party, the Court may impose a fine of up to one thousand rupees for each default on the chief of the concerned body or official. Provided that, if the chief of such body or official who has been so punished submits an application to the Court stating reasonable cause for not being able to comply with the Court's order and requesting that the fine not be imposed, and upon examination of the content of such application it appears reasonable, the Court may reduce the amount of such fine or cancel the order imposing the fine. Added by Some Nepal Acts Amendment Act, 2062.

10a. Appeal May Be Filed Through District Court: Any documents including petitions, appeals, and written replies to be registered in the Administrative Court under this Act may be registered, and the notices of summons issued by the Court may be served through the concerned District Court. 11. Making an Appeal: (1) An appellant may file an appeal either through the body or official whose decision or final order is being appealed against, or directly with the Court. (2) If an appellant files an appeal through a body under Sub-section (1), that body shall send such appeal and the file

related to that appeal to the concerned Court within seven days. (3) If, upon examination of an appeal received under Sub-section (1) or (2), it appears to be in proper form and to have clear grounds and sufficient evidence, the Registrar of the Court may register such appeal.

If it appears not to be in proper form, lacking clear grounds or sufficient evidence, or beyond the time limit, the Registrar shall reject it specifying the same reason.

(4) The matters required to be fulfilled while filing an appeal, the fees chargeable for the appeal, and other arrangements shall be as prescribed.

(5) Notwithstanding anything contained elsewhere in this Act, an employee appealing to the Court regarding a transfer shall, until the final judgment of the Court, report to the transferred office within the time limit prescribed by prevailing law and regularly perform work. 12. Time Limit for Filing Appeal: Notwithstanding anything contained in the prevailing law, while filing an appeal in the Court under this Act, the appeal must be filed within thirty-five days from the date of receiving the notice or information of such decision or final order. Provided that, if a concerned party submits an application stating that the time limit has been missed due to circumstances beyond its control, and upon examination such content appears reasonable, the Court may extend the time limit by up to thirty days. 13. Appeal Not to be Dismissed: Repealed by Some Nepal Acts Amendment Act, 2062 If the person who filed an appeal retires from service or dies before the appeal pending in the Court is settled, the Court shall not dismiss the appeal but shall finally decide it. 14. Period for Rendering Decision: Repealed by Some Nepal Acts Amendment Act, 2062 The Court shall render a decision on a case within one year from the date the appeal is filed before it. 15. Decision of the Court to be Final: The decision of the Court shall be final Repealed by Some Nepal Acts Amendment Act, 2062

16. Repealed by Some Nepal Acts Amendment Act, 2062

17. Obligation to Comply with Decision or Order: It shall be the duty of all concerned to comply with the decisions or final orders made by the Court. 18. Job Not Retained if Not Present: (1) An employee reinstated in service by a judgment of the Supreme Court or the Court shall report to the office within thirty-five days from the date of receiving knowledge of the judgment.

(2) An employee who fails to report to the office within the period under Sub-section (1) shall not retain the job. 19.

Action for Contempt of Court: (1) If anyone obstructs the Court in the performance of its judicial function or disobeys a decision or final order, the Court may initiate action for contempt of court. (2) While initiating action under Sub-section (1), if the person is found guilty of contempt of court, the Court may sentence the offender to imprisonment for up to one year or a fine of up to ten thousand rupees or both, or pass any other appropriate order. (3) A person against whom contempt of court proceedings have been initiated may, at any stage before the judgment of the case, apologize before the Court. If the Court is satisfied with the apology, it may stay the proceedings of such case. (4) Notwithstanding anything contained elsewhere in this Section, if a person sentenced for contempt of court offers an apology satisfactory to the Court, the Court may order that such sentence not be executed, or be reduced, commuted, or may set conditions and order that the sentence not be executed upon fulfillment of such conditions. 20. Provision Regarding Registrar: (1) There shall be one Registrar from the gazetted first class of the Nepal Judicial Service in the Court to act as the administrative chief of the Court, under the general direction and control of the Chairperson. (2) The functions, duties, and powers of the Registrar under Sub-section (1) shall be as follows:- (a) To register petitions and appeals brought for registration in the Court, and to reject them if they cannot be registered, (b) To register the vakalatnama if the appellant appoints a legal practitioner, (c) To cause the deposit of fees chargeable under prevailing law on appeals filed in the Court, (d) To issue summons and notices of the Court, cause service

thereof, and issue necessary directives in that regard, (e) To adjourn the dates and terms of parties to a case according to law and arrange matters related to dates, (f) To prepare and publish the annual report of the Court, (g) To implement or cause to be implemented the decisions of the Court, (h) To perform other functions related to case work, (i) To perform other functions as prescribed. (3) The Registrar under Sub-section (1) may, as required, delegate any of the powers vested in that person to any officer or employee under that person's authority. 21. Provision Regarding Employees: Other employees required by the Court shall be provided by the Government of Nepal. 22.

Taking Oath: Before assuming office, the Chairperson appointed under this Act shall take an oath before the Chief Justice of the Supreme Court, and a Member shall take an oath before the Chairperson, in the format as per the Schedule. 23. Transfer of Cases: (1) Cases filed and pending adjudication in the Administrative Court formed under the Civil Service Act, 2049 at the time of commencement of this Act shall be transferred to the Court formed under this Act. (2) If, at the time of commencement of this Sub-section, a case falling under the jurisdiction of this Court is filed before any body or official and proceedings are ongoing, such body or official shall send the original file related to such case to the Court within three months from the date of commencement of this Sub-section. After receiving the file, the Court shall register the case and conduct, hear, or decide such case. 24. Communication with Government of Nepal: The Court shall communicate with the Government of Nepal through the Ministry of the Government of Nepal dealing with law and justice matters. 25. Power to Make Rules: For the implementation of this Act, the Government of Nepal may, in consultation with the Supreme Court, make necessary rules. 26. Amendment, Repeal and Saving: (1) After the commencement of this Act, if, under the prevailing law relating to service conditions of employees of a public institution on a matter within the jurisdiction of the Court, a complaint or appeal against a departmental punishment imposed on any employee of such institution or a decision on promotion lies to any body or official, such laws shall be deemed to have been automatically amended so that an appeal to the Court lies after such body or official has decided on that matter. (2) The following Acts are repealed or amended as follows:- (a) Section 69 of the Civil Service Act, 2049 is repealed. (b) In Sub-section (1) of Section 76 of the Nepal Health Service Act, 2053, the words "in the Administrative Court formed under Sub-section (1) of Section 69 of the Civil Service Act, 2049" are replaced by the words "in the Administrative Court formed under the prevailing law." (c) In Sub-section (1) of Section 91 of the Federal Parliament Secretariat Act, 2064, the words "the Administrative Court formed under Sub-section (1) of Section 69 of the Civil Service Act, 2049" are replaced by the words "the Administrative Court formed under the prevailing law." (3) Amended by Some Nepal Acts Amendment Act, 2062.